

STATE OF COLORADO

STATE BOARD OF LICENSED PROFESSIONAL COUNSELORS EXAMINERS

Gayle D. Fidler, Program Director

1560 Broadway, Suite 1350
Denver, Colorado 80202-5146
Phone (303) 894-7766
Fax (303) 894-7764
TTY: Dial 711 for Relay Colorado
www.dora.state.co.us/mental-health

Department of Regulatory Agencies

Tambor Williams
Executive Director

Division of Registrations

Rosemary McCool
Director

Bill Owens
Governor

November 24, 2006

VIA CERTIFIED MAIL

David L. Talley, LPC
7079 Estes Drive
Arvada, CO 80004

RE: Board Case #2007-001046
Letter of Admonition

Dear Mr. Talley:

On November 14, 2006, the Colorado State Board of Licensed Professional Counselor Examiners (Board) reviewed the available material concerning your application for reinstatement of your LPC license. After thorough review and discussion, the Board determined that you were engaged in the practice of professional counseling/psychotherapy with a lapsed LPC license from July 1, 2005, and found probable cause to believe you violated CRS 12-43-216, CRS 12-43-222(1)(g) and CRS 12-43-226 and issued this Letter of Admonition in accordance with CRS 12-43-224(3)(d). Specifically, the Board determined:

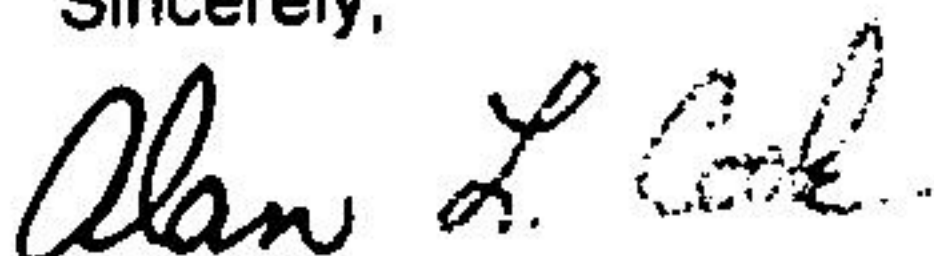
- It is your professional responsibility to maintain a current and active professional counselor license if you are engaged in the practice of professional counseling/psychotherapy.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above, and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of psychotherapy in Colorado.

In accordance with CRS 12-43-224(3)(d), the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Gayle D. Fidler, Program Director, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with CRS 12-43-224(3)(d), and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,



Alan Lee Cook, LPC, LAC
Board Chair